

VILLAGE OF TUXEDO PARK
BOARD OF TRUSTEES
PUBLIC COMMENT CONCERNING THE PROPOSED
LOCAL LAW

Delivered by David McFadden at the August 20, 2026 public hearing

Submitted by David McFadden and Robin McFadden

28 Pepperidge Road • Owners of the separately assessed boathouse at 61 Turtle
Point Road

Submitted August 21, 2026, for inclusion in the official legislative and public-hearing
record

The following statement was delivered by David McFadden during the August 20, 2026 public hearing. David and Robin McFadden submit this written copy to the Village Clerk and respectfully request that it be distributed to the Mayor, Trustees, and Village Attorney and included in the official legislative and public-hearing record.

Property and Purpose

Good evening. My name is David McFadden. I live at 28 Pepperidge Road, and I own the separately assessed boathouse at 61 Turtle Point Road. That property is directly affected by this proposed local law and, in my opinion, may have been specifically targeted by it.

The Threshold Question

Why is the Village devoting so much of the Board's time, the Village Attorney's time, and our limited municipal resources to drafting this sweeping law in response to one \$200, owner-supervised Hickey Freeman photoshoot that caused no identified noise, traffic, parking, safety, lodging, or neighborhood problem?

The Proper Role of Village Government

Our elected officials' primary responsibilities are to protect public safety, maintain infrastructure, control spending, and protect the long-term value and desirability of our community. The Village should not function like a homeowners' association by attempting to regulate ordinary social activity, household services, gifts, guests, and peaceful uses of private property.

Privacy, independence, historic properties, and private-property rights are important reasons people choose Tuxedo Park. We should be careful not to regulate away the very qualities that make this community distinctive.

Taxes, Property Rights, and Marketability

Taxes are rising, debt service is increasing, reserves are being appropriated, and important infrastructure needs remain. Combining those financial pressures with broader restrictions on private-property rights risks discouraging prospective buyers, narrowing the market, and placing downward pressure on property values.

The Boathouse and Proportionality

My boathouse is separately assessed and, based on the records I have reviewed, appears to have the highest tax burden of any residential boathouse on the lake. High taxes do not exempt any property owner from reasonable regulation. But residents are entitled to expect new restrictions to address a documented public problem and to be clear, proportionate, and no broader than necessary.

Before spending additional taxpayer-funded time on this proposal, the Board should identify the actual harm, explain why existing laws are inadequate, and determine whether a narrow safe harbor or impact-based permit would solve the issue. Our limited time and resources would be better directed toward staying within the budget, protecting reserves, controlling debt, and addressing infrastructure.

The Village's Own Budget Figures

These concerns are not theoretical. They come directly from the Village's proposed 2026–2027 budget.

The proposed Village tax rate increases from \$54.92 to \$56.52 per thousand—a 2.91 percent increase. The property-tax levy increases by 3.87 percent. General-fund debt service increases from approximately \$321,600 to \$331,400. Total general-fund spending increases to approximately \$4.595 million.

The proposed budget also appropriates \$222,134 of fund balance to support planned general-fund expenditures. The prior adopted budget similarly relied on \$249,500 identified as general-fund surplus. Appropriating fund balance is not automatically improper, but it means the budget is using accumulated resources rather than recurring revenue to cover all planned expenses.

Those are the Village's figures—not mine.

Questions the Board Should Answer

Before imposing another broad restriction on private property, the Board should tell residents what the actual remaining unrestricted fund balance is, how much debt taxpayers will be servicing over the next five and ten years, which infrastructure projects remain unfunded, and whether recurring expenses are structurally balanced without continued use of reserves.

That is where the Board's attention and the Village Attorney's time should be focused. Rising taxes, increasing debt service, reliance on reserves, deferred infrastructure, and expanding restrictions on private-property rights are precisely the combination that can discourage prospective buyers and weaken property marketability.

Requested Action

I am asking the Board to stop and reconsider this proposal. Do not turn one harmless \$200 photoshoot into a Village-wide law governing gifts, guests, household help, family activity, and peaceful uses of private property.

Identify the actual public harm. Explain why the laws already on the books are inadequate. Then replace this sweeping proposal with a narrow safe harbor or an objective permitting process based on real impacts such as noise, traffic, parking, hours, vehicles, and safety.

The Village has more urgent responsibilities. Stay within the budget. Protect our reserves. Control our debt. Repair our infrastructure. Keep residents safe. Protect property values. And stop regulating private conduct that causes no public harm.

Submission for the Record

I am submitting a separate written presentation to the Mayor, Trustees, Village Attorney, and Village Clerk. I ask that it be accepted in full and made part of the legislative and public-hearing record.

Thank you.

A Narrower and More Defensible Alternative

Good evening. My name is Robin McFadden. I live at 28 Pepperidge Road, and I own the separately assessed boathouse at 61 Turtle Point Road. That property is directly affected by this proposed local law and, in my opinion, may have been specifically targeted by it.

If the Board's concern is separate residential occupancy or surrender of possession for consideration, say so directly. Do not redefine friendship or sweep every accessory use into the prohibition.

Define the prohibited transaction narrowly: separate lodging, residential occupancy, or surrender of possession for consideration.

Exclude ordinary gifts, shared expenses, incidental hospitality, household help, caregivers, contractors, and payments to third-party service providers.

Protect low-impact, owner-supervised social, political, charitable, educational, professional, maintenance, real-estate, and creative activity.

Regulate measurable impacts: people, vehicles, parking, hours, frequency, noise, lighting, generators, road use, insurance, and extraordinary municipal services.

Provide an objective safe harbor for low-impact activities and a timely permit process for activities exceeding defined thresholds.

State exactly how Chapter 51 and Chapter 100 interact.

Thank you.